IN THE NATIONAL COMPANY LAW TRIBUNAL, DIVISION BENCH - I, CHENNAI

Under Sections 230 to 232 of the Companies Act, 2013

In the matter of *Scheme of Amalgamation*

CA(CAA)/117(CHE)2021

BRIO BLISS LIFE SCIENCE PRIVATE LIMITED
CIN NO: U93000TN2012PTC087450
S.No.15/1, 15/2,
Vanagaram Service Road,
Chennai – 600 095

... Applicant / Transferor Company

Along with

CA(CAA)/119(CHE)2021

SHIELD HEALTH CARE PRIVATE LIMITED
CIN NO: U24232TN2003PTC052013
M49-M50, 2nd Floor, Classic Royal,
L.B.Road, Indira Nagar, Adyar
Chennai – 600 020

... Applicant/ Transferee Company

And

Their Respective Shareholder

Order Pronounced on ***20th April 2022***

CORAM

R. SUCHARITHA, MEMBER (JUDICIAL)
SAMEER KAKAR, MEMBER (TECHNICAL)

For Applicant(s): *P.H.Arvindh Pandian Senior Advocate*
for Pawan Jhabakh, Advocate

COMMON ORDER

Per: **R. SUCHARITHA, MEMBER (JUDICIAL)**

Under consideration are two applications Viz., CA(CAA)/117(CHE)/2021 &CA(CAA)/119(CHE)/2021 filed by the Applicant Companies, namely **BRIO BLISS LIFE SCIENCE PRIVATE LIMITED** (for brevity "Transferor Company") and **SHIELD HEALTH CARE PRIVATE LIMITED** (for brevity "Transferee Company")under section 230-232 of Companies Act, 2013, and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 in relation to the Scheme of Amalgamation (hereinafter referred to as the "SCHEME") proposed by the Applicant Companies. The said Scheme is also appended as "Annexure – A6" to the CA/CAA/117& 119(CHE) 2021.

2. The Applicant Companies in this Company Application has sought for the following reliefs;

For Transferor Company:

EQUITY SHAREHOLDERS	SECURED CREDITORS	UNSECURED CREDITORS
To Order for meeting	NIL	*To Order for Meeting*

For Transferee Company:

EQUITY SHAREHOLDERS	COMPULSORILY CONVERTIBLE PREFERENCE SHAREHOLDER	SECURED CREDITORS	UNSECURED CREDITORS
To Order for meeting	To Order for meeting	To Dispense with	*To Order for Meeting*

3. From the certificate of incorporation filed, it is evident that the Transferor Companyis a Private limited company incorporated under the provisions of Companies Act, 1956 on 31.08.2012. The Authorized Share Capital of the Transferor Company as on 31.08.2021 is ₹6,00,00,000 (Rupees Six Crores Only) consisting of 60,00,000 (Rupees SixtyLakh only) Equity Shares of Rs.10/- each. The Issued, Subscribed and Paid-up Capital of the Transferor Company is ₹3,81,53,360 (Rupees Three Crores Eighty One Lakhs Fifty Three Thousand Three Hundred and Sixty Only) consisting of 38,15,336 (Rupees Thirty Eight Lakhs Fifteen Thousand Three Hundred and Thirty Six only) Equity Shares of Rs.10/- each.

4. From the certificate of incorporation filed, it is evident that the Transferee Companyis a Private limited company incorporated under the provisions of Companies Act, 1956 on 25.11.2003 under the name and style "Eldish Pharmaceuticals Private Limited". Subsequently, the name of the Transferee Company was changed from "Eldish Pharmaceuticals Private Limited" to "Shield Health Care

Private Limited" with effect from 23.03.2006.The Authorized,issued, Subscribed and paid up share capital of the Applicant Company as on 31.10.2021 is as follows:

Particular	October 31,2021
Authorized Share Capital	**Amount in Rs.**
1,55,000 Equity Shares of Rs.100/- each	1,55,00,000
66,000 Compulsorily Convertible Preference Shares of Rs.200/- each	1,32,00,000
8,600 Optionally Convertible Redeemable Preference Shares of Rs.500/- each	43,00,000
TOTAL	**3,30,00,000**
Issued Share Capital	
1,32,130 Equity Shares of Rs.100/- each	1,32,13,000
51,054 Compulsorily Convertible Preference Shares of Rs.200/- each	1,02,10,800
TOTAL	**2,33,10,800**
Subscribed and Paid Up Share Capital	
1,23,500 Equity Shares of Rs.100/- each	1,23,50,000
8,630 Equity Shares of Rs.100/- each (Rs.10 paid up)	86,300
51,054 Compulsorily Convertible Preference Shares of Rs.200/- each	1,02,10,800
TOTAL	**2,26,47,100**

5. Affidavit in support of the above application was sworn for and behalf of the applicant Companies has been filed by Mr. V.Gowrishankar in the capacity of Authorised Signatory for the

Transferor Company and by one Mr. L.Mahadevan in the capacity of Authorised Signatory for the Transferee Company along with the application and it is also represented that the Registered office of the Transferor Company is situated at S.No.15/1,15/2, Vanagaram Service Road, Chennai – 600 095 and the Registered office of the Transferee Company is situated at M49-M50, 2nd Floor, Classic Royal, L.B.Road, Indira Nagar, Adyar, Chennai- 600 020 within the territorial jurisdiction of the Bench of this Tribunal and falling within the purview of Registrar of Companies, Chennai.

6. **BRIO BLISS LIFE SCIENCE PRIVATE LIMITED**
TRANSFEROR COMPANY – CA(CAA)/117(CHE)/2021

(i) There are 22(Twenty Two) Equity Shareholders and list of shareholders to this effect is placed at page Nos 154 & 155 of the typed set filed with the applicationand sought for Convening, Holding and Conducting of the meeting.

(ii) There are NILSecured Creditors and the certificate issued by the Chartered Accountant to this effect is placed at Page No. 148 of the typed set filed along with the Application. Hence the necessity of Convening, holding and conducting the meeting does not arise.

(iii) There are 33 (Thirty)Unsecured Creditors and the certificate issued by the Chartered Accountants to this effect is placed at Page Nos. 149 to 151of the typed set

filed with the application and sought for Convening, Holding and Conducting of the meeting.

7. **SHIELD HEALTH CARE PRIVATE LIMITED TRANSFEREE COMPANY CA(CAA)/119(CHE)/2021**

(i) There are 26 (Twenty Six) Equity Shareholders and the list of shareholders to this effect is placed at Page Nos. 211 -212 of the typed set filed with the application and sought for Convening, Holding and Conducting of the meeting.

(ii) There are 27 (Twenty Seven) Compulsorily Convertible Preference Shareholders and the list of shareholders to this effect is placed at Page Nos. 213 -214 of the typed set filed with the application and sought for Convening, Holding and Conducting of the meeting

(iii) There is 1 (One) Secured Creditor and the certificate issued by the Chartered Accountant to this effect is placed at Page No.193 - 194of the typed set filed along with the Application and consent by way of Affidavit given by the sole Secured Creditor is placed at Page Nos.194A to 198 and sought for dispensation with holding of meeting.

(iv) There are 118 (One Hundred and Eighteen)Unsecured Creditors and the certificate issued by the Chartered Accountants to this effect is placed at Page Nos. 199 to 206 of the typed set filed with the application and

sought for Convening, Holding and Conducting of the meeting.

8. We have perused the application and the connected documents / papers filed therewith including the Scheme contemplated by the Applicant companies.

9. The Applicant Companies has filed its Memorandum and Articles of Association *inter alia* delineating its object clauses as well as their last available Audited Annual Accounts for the year ended 31.03.2021 and Provisional Financial Statements for the period ended on 31.08.2021.

10. The Board of Directors of the Applicant Companies vide meeting held on 1st November 2021had unanimously approved the proposed Scheme as contemplated above and copies of resolutions passed thereon have been placed on record by the applicant companies.

11. The Appointed date as specified in the Scheme is 01.09.2021.

12. The Statutory Auditors of the Transferor and Transferee Company have examined the Scheme in terms of provisions of Sec. 232 of Companies Act, 2013 and the rules made thereunder and certified that the Accounting Standards are in compliance with Section 133 of the Companies Act, 2013.The said Certificates of the Statutory Auditors in this regard is placed at "Annexure A9" (with respect to Transferor Company) and "Annexure A11" (with respect to Transferee Company) in their respective accompanying typed set of Documents.

13. Taking into consideration the application filed by the Applicant Company and the documents filed therewith as well as the position of law, this Tribunal propose to issue the following directions: -

A. IN RELATION TO THE TRANSFEROR COMPANY : CA(CAA)/117(CHE)/2021

(i) **With respect to Equity shareholders:**

Meeting of the Equity Shareholders of the TransferorCompany is directed to be held on **08.06.2022 at 09:00 AM** at the Registered Office address of the Transferee Company or through video conferencing or if not convenient at any other suitable place for which prior approval shall be sought from this Tribunal within a period of 7 days from the date of this order and prior to the issue of notices.

(ii) **With respect to Secured Creditors:**

Since it is represented by the TransferorCompany that there is NIL Secured Creditor in the Company, hence the necessity of Convening, holding and conducting a meeting does not arise.

(iii) **With respect to Unsecured Creditors:**

Meeting of the Unsecured Creditors of the Transferor Company is directed to be held on **08.06.2022 at 10:30 AM** at the Registered Office address of the Transferee Company or through video conferencing or if not convenient at any other suitable place for which prior approval shall be sought from this Tribunal within a period of 7 days from the date of this order and prior to the issue of notices.

B. IN RELATION TO THE TRANSFEREE COMPANY : CA(CAA)/119(CHE)/2021

(i) **With respect to Equity shareholders:**

Meeting of the Equity Shareholders of the Transferee Company is directed to be held on **08.06.2022 at 12:00 PM** at the Registered Office address of the Transferee Company or through video conferencing or if not convenient at any other suitable place for which prior approval shall be sought from this Tribunal within a period of 7 days from the date of this order and prior to the issue of notices.

(ii) **With respect to Compulsorily Convertible Preference Shareholders:**

Meeting of the Compulsorily Convertible Preference Shareholders of the Transferee Company is directed to be held on **08.06.2022 at 01:30 PM** at the Registered Office address of the Transferee Company or through video conferencing or if not convenient at any other suitable place for which prior approval shall be sought from this Tribunal within a period of 7 days from the date of this order and prior to the issue of notices

(iii) **With respect to Secured Creditors:**

Since it is represented by the Transferee Company that there isonesecured Creditor in the Company whose consents by way of Affidavits have been obtained from sole secured Creditor and are placed on record, the necessity of convening, holding and conducting the meeting is ***dispensed with***.

(iv) **With respect to Unsecured Creditors:**

Meeting of the Unsecured Creditors of the Transferee Company is directed to be held on **08.06.2022 at 03:00 PM** at the Registered Office address of the transferee Company or through video conferencing or if not convenient at any other suitable place for which prior approval shall be sought from this Tribunal within a period of 7 days from the date of this order and prior to the issue of notices.

14. The quorum for the meeting of the Transferor Company shall be as follows;

S.No	Class	Quorum
1	Equity Shareholders	5
2	Unsecured Creditors	10

15. The quorum for the meeting of the Transferee Company shall be as follows;

S.No	Class	Quorum
1	Equity Shareholders	10
2	Compulsorily Convertible Preference Shareholders	10
3	Unsecured Creditors	15

i) The Chairperson appointed for the above said meetings shall be **Mr. Lakshmi Narasimhan Mahadevan,** the *Director of the Company, failing him Mr.Krishna Krishnan Ramanathan, Director.*

ii) Mr. Sony Mathew of M/s. JM Associatesis appointed as a Scrutinizer failing him Mr.Soy Joseph of J.M & Associates, PCS for the above said meetings. The Chairperson(s) will file the reports of the meeting within a week from the date of holding of the above said meetings.

iii) In case the quorum as noted above, for the above meeting of the Applicant Companies is not present at the meeting, then the meeting shall be adjourned by half an hour, and thereafter the person(s) present and voting shall be deemed to constitute the quorum. For the purpose of

computing the quorum the valid proxies shall also be considered, if the proxy in the prescribed form, duly signed by the person entitled to attend and vote at the meeting, is filed with the registered office of the applicant companies at least 48 hours before the meeting. The Chairperson and Alternate Chairperson appointed herein along with Scrutinizer shall ensure that the proxy registers are properly maintained. However, every endeavour should be made by the applicant companies to attain at least the quorum fixed, if not more in relation to approval of the scheme.

iv) The meetings shall be conducted as per applicable procedure prescribed under the MCA Circular MCA General Circular Nos. (i) 20/2020 dated 5th May, 2020 (AGM Circular), (ii) 14/2020, dated 08.04.2020 (EGM Circular-I) and (iii) 17/2020 dated 13.04.2020 (EGM Circular-II);

v) That individual notices of the above said meetings shall be sent by the Applicant Company through registered post or speed post or through courier or e-mail, 30 days in advance before the scheduled date of the meeting, indicating the day, date, the place and the time as aforesaid, together with a copy of Scheme, copy of explanatory statement, required to be sent under the Companies Act, 2013 and the prescribed form of proxy shall also be sent along and in addition to the above any other documents as may be prescribed under the Act or rules may also be duly sent with the notice.

vi) That the Applicant Company shall publish advertisement with a gap of atleast 30 clear days before the aforesaid meetings, indicating the day, date and the place and time as aforesaid, to be published in the English Daily "*Business Standard*" (All India Edition), and "*Makkal Kural*" *Tamil* (Tamil Nadu Edition) in Vernacular stating the copies of Scheme, the Explanatory Statement required to be furnished pursuant to Section 230 of the Companies Act, 2013 and the form of proxy shall be provided free of charge at the registered office of the respective Applicant Companies.

vii) The Chairperson shall as afore stated be responsible to report the result of the meeting within a period of 3 days of the conclusion of the meeting with details of voting on the proposed scheme.

viii) The companies shall individually send notice to concerned Regional Director, MCA, Registrar of Companies Chennai, Official Liquidator and the Income Tax Authorities, as well as other Sectoral regulators who may have significant bearing on the operation of the applicant companies or the Scheme *per se* along with copy of required documents and disclosures required under the provisions of Companies Act, 2013 read with Companies (Compromises, Arrangements, Amalgamations) Rules, 2016.

ix) The applicant companies shall further furnish copy of the Scheme free of charge within 1 day of any requisition for the Scheme made by every creditor or member of the applicant companies entitled to attend the meetings as aforesaid.

x) The Authorized Representative of the Applicant Companies shall furnish an affidavit of service of notice of meetings and publication of advertisement and compliance of all directions contained herein at least a week before the proposed meetings.

xi) All the aforesaid directions are to be complied with strictly in accordance with the applicable law including forms and formats contained in the Companies (Compromises, Arrangements, Amalgamations) Rules, 2016 as well as the provisions of the Companies Act, 2013 by the Applicants.

16. The above Applications stand **allowed** on the aforesaid terms.

-Sd-
SAMEER KAKAR
MEMBER (TECHNICAL)

-Sd-
R. SUCHARITHA
MEMBER (JUDICIAL)

SriramAnanth.V